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REGISTERED

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Our ref. 024/111.486

20 February 2007

Dear Mr. Wevers,

Re: RTC / Wevers

My clients, Religious Technology Center (hereinafter "RTC") and Church of Scientology International (hereinafter "CSI"), have requested me to represent their interests with regard to the following matter.

As I am sure you are already aware, RTC and CSI are non-profit religious corporations established in Los Angeles, California. RTC is the owner of the confidential Advanced Technology of the Scientology religion and the holder of exclusive rights under the copyrights applicable to the Advanced Technology materials. The Advanced Technology materials are unpublished, copyrighted works. RTC's works include, among others, the individual works comprising levels known as "OT II Series" and "OT III Series." CSI is the owner of a number of published works by Mr. L. Ron Hubbard, the founder of the Scientology religion.

You have placed the Advanced Technology materials referenced above on your website, contained in a document entitled the Fishman Affidavit. RTC previously sued Karin Spaink and several internet providers, including XS4ALL, involving these identical materials. On the eve of trial in these proceedings, Pieter Bakker Schut, the attorney for Spaink and XS4ALL, Felipe Rodriguez of XS4ALL and Karin Spaink reviewed the copies of these materials against the originals and saw that these were wholesale copying of entire works.

Spaink then made a posting to the Internet on 22 February 1996 in which she stated that, after seeing the comparisons between the material on her website and the originals, "the versions on my homepage were indeed infringing RTC's copyright," as was an article entitled "A Manual on the Dissemination of Material," which is Exhibit G of the document that Spaink was addressing (which is also part of what you have on your website). She said that Bakker Schut and an attorney for another service provider "have thereupon give advise [sic] to take down OT 2, OT 3 and Exhibit G." Spaink confirmed in her email that on 21 February 1996 she had removed these items from her homepage and replaced them with "three new articles that replece [sic] them: summaries and comments," which contained some quotations.

When the case proceeded after that, it related to the quotations. The District Court ruled that the full works that Spaink had removed from her website did infringe the copyrights in those works, but that

the quotations she had substituted were "only a relatively small part of the works" and were therefore within the limits permitted by law. Furthermore, the Court found that there was "no danger of repetition." (District Court of the Hague, decision of 9 June 1999, Case No. 96/1048, consideration 12 and 14)

When the case was reviewed by the Court of Appeal, it agreed with the District Court that because Spaink had taken down the full works and had not placed them back up on her website, there was no longer any threat that this would occur. (Court of Appeal of The Hague, decision of 4 September 2003, Case No. 99/1040, consideration 10)

Contrary to the Spaink case, you have disclosed on your website the identical works that XS4ALL and the other defendants took down before trial in the earlier case. These are the entirety of a number of RTC's OT II and OT III copyrighted works, not just quotations. As counsel for XS4ALL determined previously, and the District Court agreed, these are infringing RTC's copyright. You therefore act unlawfully in having these materials on your website without RTC's permission.

You have also placed, in their entirety, a number of CSI's copyrighted works on your website as well.

These copyrighted works can be found under the following URLs:

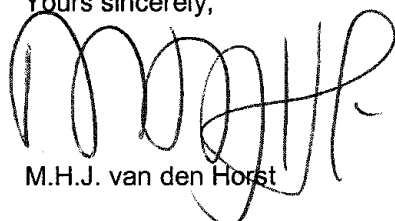
<http://www.xs4all.nl/~johanw/CoS/fishman.html>
<http://www.xs4all.nl/~johanw/CoS/enemy-names.txt>
<http://www.xs4all.nl/~johanw/CoS/attacks-on-scn.txt>
<http://www.xs4all.nl/~johanw/CoS/targets-defence.txt>
<http://www.xs4all.nl/~johanw/CoS/black-propaganda.txt>
http://www.xs4all.nl/~johanw/CoS/OSA_NW10-Principle_of_Gov.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW17-Genus_of_Gov.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW18-Why_Gov_Attack.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW19-Willfull_False_Reports.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW35-Intelligence.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW45-Gov_Allegations.txt
http://www.xs4all.nl/~johanw/CoS/OSA_NW7-Enemy_Action.txt

By placing CSI's copyrighted works on your website, you also infringe CSI's copyrights since you have not been granted permission to reproduce or disclose those works.

I hereby request you, and in so far as necessary, summon you to confirm to me in writing within 7 days from today (therefore, no later than 27 February 2007) that you will immediately remove and in the future will refrain from placing on your website any works that infringe RTC's or CSI's copyrights.

Reserving all rights,

Yours sincerely,



M.H.J. van den Horst